

Ajay Kumar Gupta v. State of U.P. & Ors.

Allahabad High Court · Division Bench · 1 September 2014 · WRIT - C No. - 46212 of 2014 · **Writ disposed; EE to hear disputing parties and pass orders in three months.**

HEADNOTE

A new-connection claim for premises whose occupancy is disputed between the applicant and his brother is not decided on writ. The Executive Engineer is directed to hear the disputing parties and pass appropriate orders in accordance with the Electricity Supply Code, 2005, within three months of production of a certified copy.

FACTUAL SUMMARY

Ajay Kumar Gupta applied for an electricity connection to premises disputed between him and his brother, claiming to be the occupier. He sought a writ from the Allahabad High Court against the State and the distribution licensee. Counsel for the Electricity Department submitted that the application would be considered and decided in accordance with the Electricity Supply Code, 2005. The concerned officer was the Executive Engineer, Urban Electricity Distribution Division (IV), Poorvanchal Electricity Distribution Corporation Limited, Bhelupur, Varanasi.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

new connection — occupancy dispute

HOLDING

Where a new-connection application is made for premises whose occupancy is disputed between the applicant and his brother, the writ court will not determine occupancy or direct supply. The Executive Engineer must hear the disputing parties and pass appropriate orders in accordance with the Electricity Supply Code, 2005, within three months of production of a certified copy of the order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS THE OCCUPIER ENTITLED TO A NEW CONNECTION

Left to the Executive Engineer after hearing the disputing parties, in accordance with the Electricity Supply Code, 2005. ¶ 1